

HEFCE, the State of Open Access in the UK and Post-2014 REF

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Having returned from a glorious week away in Croatia and Bosnia (for Pynchon fans: it was "very nice, very nice, very nice indeed"), I have returned to an inbox that features the current state of play with HEFCE's thinking on open access mandates for a post-2014 REF. In order to ensure that I've got it straight in my own head, I thought I'd write a summary post for quick reference. I'm using [the PDF version](#) as my reference. This refers to the 16th July 2013 document.

When will HEFCE announce the decision on OA mandates?

Paragraph 12	"It is our intention to announce the policy decisions early in 2014."
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When will this apply?

Paragraph 41	"the output is published after a two year notice period (from 2016 onwards)"
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Paragraph 53	"it is our view that a notice period of two years from the date of the policy announcement is appropriate to allow for the publication cycle of journal articles and conference proceedings"
Paragraph 54	"Where an output has more than one publication date, for example online first, the earliest date of publication will determine whether the criteria apply. This is likely to mean that the requirement will start to apply to outputs with an earliest date of publication in or after early 2016"

If it's *published before* 2016, this doesn't apply. So, if submitting to a non-compliant venue, it would have to be out before then.

How transparent is HEFCE's process?

Paragraph 19	"all responses may be disclosed on request, under the terms of the Freedom of Information Act."
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What is HEFCE's motivation?

Paragraph 22	"This objective is aligned with the Government's aim of increasing transparency"
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Be warned; as with RCUK, the reasons that they are pursuing OA are not necessarily the best. There are, though, many good outcomes of this, so watch carefully.

What counts as "open access" for HEFCE?

Green or Gold are acceptable

Paragraph 25	"accessible through a UK HEI repository, immediately upon either acceptance or publication , although the repository may provide access in a way that respects agreed embargo periods" (my emphasis)
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Paragraph 28	"the output need only be accessible through the institutional repository of the HEI at which the author (or one of the authors) is employed at the time of either acceptance or publication"
Paragraph 30	"outputs accessible through shared facilities maintained by HEIs that do not have their own institutional repositories would meet the criteria"

Licensing must permit re-use

Paragraph 25	"presented in a form allowing the reader to search for and re-use content (including by download and for text-mining), both manually and using automated tools, provided such re-use is subject to proper attribution under appropriate licensing."
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So, a CC-BY derivative license. BUT:

Paragraph 34	"We do not propose to specify a particular form of licence, in view of the as yet unresolved issues, and in recognition of the likely ongoing developments in this area"
Paragraph 37	"We [...] have not set a requirement for a specific licence type"

However, publishers are going to have to adapt quickly to this (probably with grim custom licenses, although I hope not) if they are to stay ahead of this curve.

Timing of deposit (acceptance or publication) not yet determined

Paragraph 29	"we are seeking views on whether it is preferable for the criteria to state that the point at which outputs are made accessible (respecting any embargo periods) through institutional repositories should be acceptance for publication, or publication itself."
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Only final peer-reviewed text allowed

Paragraph 25	"made available as the final peer-reviewed text , though not necessarily identical to the publisher's edited and formatted version" (my emphasis)
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Embargo Periods

Paragraph h 32	"We propose that the REF main panels will follow the embargo period set by the appropriate Research Council"
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So, currently, (taking the longest embargo periods), this is 12 months for science and 24 months for others (eg AHRC). HEFCE should surely clarify *which* of RCUK's periods they are referring to; is this the "no funds" route or not?

Researchers *must* deposit at time of publication or acceptance (see above)

Paragraph 26	"work which has been originally published in an ineligible form then retrospectively made available in time for the post-2014 REF submission date, should not be eligible, as the primary objective of this proposal is to stimulate immediate open-access publication"
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This is a big one. You **must** deposit at the point of publication to be eligible. Admin overhead conflicts slightly with:

Paragraph 29	"We also wish to make the process of compliance as simple as possible for authors and HEIs"
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Open Data?

Paragraph 40	"we retain our original position that we do not consider it feasible at present to make access to data a formal requirement in a post-2014 REF"
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No.

Which Outputs?

Paragraph 41	"the output is a journal article or conference proceeding; the output is published after a two year notice period (from 2016 onwards); the output lists a UK HEI in the 'address' field."
Paragraph 45	"We propose that the criteria for open access in the post-2014 REF will apply to outputs defined as articles in academic journals or conference proceedings"

So, this stuff only applies from 2016.

Books

Paragraph 47	"The funding bodies accept that it is currently not reasonable to expect open access options to be widely available for long-form publications, and recognise the differences that exist between these publications and journal articles in terms of business models and publication cycles. Therefore we do not intend for the open access requirements to apply to monographs and books for the post-2014 REF."
Paragraph 50	"In view of our expectation that open access publication for monographs and books is likely to be achievable in the long term, we would like to make clear our intention to extend the requirement to these output types in the future, but not in the period being addressed by this consultation."

No.

Sensitive Material

Paragraph 51	"We recognise that open-access publication will not be appropriate for some output types, for example those delivered confidentiality for security or commercial reasons. The research assessment process has established practices for handling this sort of material, and it is not our intention that the criteria will apply to these outputs."
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Disciplinary Exemptions

Paragraph 52	"the benefits of open access should be extended to research in all disciplines"
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Weasel phrasing, but you get the message.

Staff Mobility and UK Employment

Paragraph 58	"we propose that the criteria for open access apply to outputs that list a UK HEI in the 'address' field"
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For information on international collaborations, see "exceptions" below.

Exceptions

Option 1:

Paragraph 63	"Full compliance with the criteria (for those outputs meeting the definition at paragraph 41). This would include an option for exceptions on a case-by-case basis, in exceptional circumstances. We envisage that, in practical terms, this would involve providing a short statement with the output at the time of submission. We would need to consider whether sub-panels would be asked to adjudicate, or whether a central group or the REF team would do so. We consider that this approach may introduce a lesser burden on HEIs than a percentage-based approach; however, it would include an element of risk in the submission, and is likely to demand a higher level of compliance for outputs within scope across all Units of Assessment (UoAs)."
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Option 2:

Paragraph 63	"A percentage-based approach to compliance with the policy, according to which a specified percentage of outputs in a submission (meeting the definition at paragraph 41) would be required to meet the criteria for open access. The proposed percentage targets set out below were determined through reference to the compliance expectations of other funders and estimates of the proportion of project-funded research by discipline. As shown below, given the variance in the percentage targets using this method, it is feasible that different main panels might have different expectations. We welcome views on whether variance or consistency is preferred. It is our view that a percentage-based approach would allow more flexibility during the transition to open access, but we are aware that it may be challenging on a practical level for HEIs to manage during submission preparation."
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Aiming at ~70% compliance.